

No. _____

In the Supreme Court of the United States

PRESIDENT DONALD J. TRUMP,
Applicant,

v.

UNITED STATES OF AMERICA,
Respondent.

On Application for Stay of the Mandate To Be Issued by the
United States Court of Appeals for the District of Columbia Circuit

APPLICATION FOR A STAY OF THE D.C. CIRCUIT'S MANDATE PENDING THE FILING OF A PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

The questions presented are:

I. Whether the doctrine of absolute presidential immunity includes immunity from criminal prosecution for a President's official acts, *i.e.*, those performed within the "outer perimeter' of his official responsibility." *Nixon v. Fitzgerald*, 457 U.S. 731, 756 (1982) (quoting *Barr v. Matteo*, 360 U.S. 564, 575 (1959)).

II. Whether the Impeachment Judgment Clause, U.S. CONST. art. I, § 3, cl. 7, and principles of double jeopardy foreclose the criminal prosecution of a President who has been impeached and acquitted by the U.S. Senate for the same and/or closely related conduct that underlies the criminal charges.

PARTIES TO THE PROCEEDING

The applicant is President Donald J. Trump (“President Trump”).

The respondent is the United States of America (“Special Counsel” or “government”).

RELATED PROCEEDINGS

United States District Court (D.D.C.):

- *United States v. Trump*, No. 23-cr-257 (Dec. 1, 2023)

United States Court of Appeals (D.C. Cir.):

- *United States v. Trump*, No. 23-3190 (opinion issued Dec. 8, 2023)
- *United States v. Trump*, No. 23-3228 (opinion issued Feb. 6, 2024)

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INTRODUCTION

This application is “déjà vu all over again.” *Yogi Berra Museum & Learning Center*, “Yogi-isms,” <https://yogiberramuseum.org/about-yogi/yogisms/>. Two months ago, after the district court denied President Trump’s claim of Presidential immunity in this criminal case, the Special Counsel filed a petition for certiorari before judgment asking this Court to undertake an extraordinary departure from ordinary appellate procedures and decide the vital and historic question of Presidential immunity on a hyper-accelerated basis. This Court correctly chose to follow standard judicial process and declined to do so. Now, at the Special Counsel’s urging, a panel of the D.C. Circuit has, in an extraordinarily fast manner, issued a decision on President Trump’s claim of immunity and ordered the mandate returned to the district court to proceed with President Trump’s criminal trial in four business days, unless this Court intervenes (as it should). App’x 58A. This Court should stay the D.C. Circuit’s mandate to forestall, once again, an unprecedented and unacceptable departure from ordinary appellate procedures and allow President Trump’s claim of immunity to be decided in the ordinary course of justice.

The reasons to do so are compelling. President Trump’s claim that Presidents have absolute immunity from criminal prosecution for their official acts presents a novel, complex, and momentous question that warrants careful consideration on appeal. The panel opinion below, like the district court, concludes that Presidential immunity from prosecution for official acts does not exist *at all*. This is a stunning breach of precedent and historical norms. In 234 years of American history, no President was ever prosecuted for his official acts. Nor should they be. Presidents “must make the most sensitive and far-reaching decisions entrusted to any official under our constitutional system.” *Fitzgerald*, 457 U.S. at 752. Their decisions are the most politically controversial of any official, and they draw the most national attention and political ire, making “the President ... an easily identifiable target”

for politically motivated prosecution. *Id.* at 753. If the prosecution of a President is upheld, such prosecutions will recur and become increasingly common, ushering in destructive cycles of recrimination. Criminal prosecution, with its greater stigma and more severe penalties, imposes a far greater “personal vulnerability” on the President than any civil penalty. *Id.* The threat of future criminal prosecution by a politically opposed Administration will overshadow every future President’s official acts—especially the most politically controversial decisions. The President’s political opponents will seek to influence and control his or her decisions via effective extortion or blackmail with the threat, explicit or implicit, of indictment by a future, hostile Administration, for acts that do not warrant any such prosecution. This threat will hang like a millstone around every future President’s neck, distorting Presidential decisionmaking, undermining the President’s independence, and clouding the President’s ability “to deal fearlessly and impartially with’ the duties of his office.” *Id.* at 752. Without immunity from criminal prosecution, the Presidency as we know it will cease to exist.

President Trump’s application easily satisfies this Court’s traditional factors for granting a stay of the mandate pending en banc review and review on certiorari by this Court.

First, the likelihood that this Court will grant certiorari in the future is extremely strong. As the Special Counsel emphatically stated in December, “[i]t is of imperative public importance that [President Trump’s] claims of immunity be resolved by this Court,” and “only this Court can definitively resolve them.” Pet. for Cert. Before Judgment, *United States v. Trump*, No. 23-624 (U.S. filed Dec. 11, 2023), at 2, 3 (“Pet. in No. 23-624”). President Trump’s claim presents “a quintessential example of ‘an important question of federal law that has not been, but should be, settled by this Court.’” *Id.* at 12 (quoting Sup. Ct. R. 10(c)).

Second, there is far more than a “fair prospect” that this Court will reverse the decision below. The panel opinion misapprehends and contradicts the original understanding of the Executive Vesting Clause and the separation of powers, as interpreted in an unbroken line of legal and historical precedent going back to *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803). Chief Justice Marshall thought it self-evident that Article III courts cannot sit in judgment directly over the President’s official acts, which “can never be examinable by the courts.” *Id.* at 166. Because “the courts” cannot “examin[e],” *id.*, the President’s official acts, they cannot enter a criminal judgment against him and imprison him on the basis of those official acts. Yet the D.C. Circuit’s judgment seemingly authorizes the district court to conduct a criminal trial of President Trump based on his official acts before this Court concludes its review of this momentous question—thus subjecting the Presidency to the most intrusive possible “examin[ation] by the courts,” *id.*, and inflicting one of the gravest wounds to the separation of powers in our Nation’s history.

Third, absent a stay from this Court, irreparable injury to President Trump is inevitable. It is axiomatic that President Trump’s claim of immunity is an entitlement *not to stand trial at all*, and to avoid the burdens of litigation pending review of his claim. Yet the D.C. Circuit’s judgment appears to authorize the district court to resume criminal proceedings *immediately*, and to conduct President Trump’s criminal trial while his claim is pending before this Court—and there is strong indication that the district court will do so. In addition, President Trump is the leading candidate for President in the 2024 election. Conducting a months-long criminal trial of President Trump at the height of election season will radically disrupt President Trump’s ability to campaign against President Biden—which appears to be the whole point of the Special Counsel’s persistent demands for expedition. The D.C. Circuit’s order thus threatens immediate irreparable injury to the First Amendment

interests of President Trump and tens of millions of American voters, who are entitled to hear President Trump’s campaign message as they decide how to cast their ballots in November.

This Court should stay the D.C. Circuit’s mandate pending resolution of President Trump’s petition for certiorari in this Court and subsequent proceedings on the merits. As additional relief, President Trump also requests that this Court stay the D.C. Circuit’s mandate pending the resolution of a petition for en banc consideration in that court, before the filing (if necessary) of his petition for certiorari in this Court.

STATEMENT

I. President Trump Was Indicted for His Official Acts as President.

On August 1, 2023, President Trump was indicted on four counts—including two counts alleging violations of 18 U.S.C. § 1512(c)(2)¹—for his alleged conduct following the outcome of the 2020 Presidential election. D. Ct. Doc. 1. All the conduct alleged in the indictment occurred between November 2020 and early January 2021, while President Trump was still President. D. Ct. Doc. 1. President Trump was impeached for much of the same conduct charged in the indictment on January 11, 2021, and acquitted by the U.S. Senate on February 13, 2021. *See* H. Res.24, 117th Cong. (2021). The indictment charges President Trump with five types of conduct, all constituting official acts of the President.

First, it alleges that President Trump, using official channels of communication, made a series of tweets and other public statements on matters of paramount federal concern, contending that the 2020 federal election was tainted by fraud and irregularities that should be addressed by government officials. D. Ct. Doc. 1, ¶¶ 2, 11-12, 19, 32-34, 37, 41-42, 46, 52,

¹ This is the same statutory section whose interpretation is at issue in *Fischer v. United States*, No. 23-5572 (cert. granted Dec. 13, 2023), which is pending before this Court and may bear directly upon the validity of those charges against President Trump.

99, 102, 104 (alleging public statements regarding the federal election and state and federal officials’ exercise of their official responsibilities with respect to the election); *id.* ¶¶ 22, 28, 44, 50, 87-88, 90(c), 96(a)-(c), 100(a)-(b), 111, 114 (alleging tweets about the same topics).

Second, the indictment alleges that President Trump communicated with the Acting Attorney General and officials at the U.S. Department of Justice—which he oversaw as an integral part of his official duties as chief executive—about investigating suspected election crimes and irregularities, and possibly appointing a new Acting Attorney General. *Id.* ¶¶ 10(c), 27, 29, 36, 45, 51, 70-85. These include allegations of a series of communications urging the Acting Attorney General and Acting Deputy Attorney General to investigate widespread reports of election fraud, *id.* ¶¶ 29, 36, 45, 51; and allegations of deliberations during Oval Office meetings about whether to replace the Acting Attorney General, a Cabinet-level officer constitutionally appointed by the President, *id.* ¶¶ 74, 77, 84.

Third, the indictment alleges that President Trump communicated with state officials about the administration of the federal election and urged them to exercise their official responsibilities in accordance with the conclusion that the 2020 presidential election was tainted by fraud and irregularities. *Id.* ¶¶ 10(a), 15-18, 21, 24, 26, 31, 35, 38-39, 43.

Fourth, the indictment alleges that President Trump communicated with the Vice President in his capacity as President of the Senate, the Vice President’s official staff, and other members of Congress to urge them to exercise their official duties in the election certification process in accordance with President Trump’s contention that the election was tainted by fraud and irregularities. *Id.* ¶¶ 10(d), 86-95, 97, 101, 122 (Vice President and his official staff); *id.* ¶¶ 115, 119(b)-(c) (attempts to communicate with Members of Congress).

Fifth, the indictment alleges that other individuals organized slates of alternate electors from seven States to ensure that the Vice President would be authorized to exercise

his official duties in the manner urged by President Trump. *Id.* ¶¶ 53-69. According to the indictment, these alternate slates of electors were designed to validate the Vice President’s authority to conduct his official duties as President Trump urged. *Id.* ¶¶ 10(b), 53.

II. The Lower Courts Incorrectly Deny President Trump’s Immunity Claims.

President Trump filed motions to dismiss the indictment on multiple grounds. As relevant here, President Trump contended that (1) the indictment must be dismissed because it brings criminal charges against him based on his official acts as President, and is thus barred by absolute Presidential immunity from criminal prosecution for official acts, D. Ct. Doc. 74; and (2) the indictment must be dismissed under the Impeachment Judgment Clause and principles of double jeopardy because it charges President Trump with conduct for which he was impeached and acquitted by the U.S. Senate, D. Ct. Doc. 113.

On December 7, 2023, the district court ruled against President Trump’s claims. Pet. App’x in No. 23-624, at 1a-59a. The district court held that Presidential immunity from criminal prosecution for official acts does not exist in any circumstance. *Id.* at 7a. It held that a federal prosecutor may bring criminal charges against a former President based on conduct for which he was acquitted during an impeachment proceeding. *Id.* at 46a.

The district court did not assess whether President Trump’s alleged actions fell within the “outer perimeter of his official responsibility,” *Fitzgerald*, 457 U.S. at 755 (quotation marks omitted), or were official acts on any basis. D. Ct. Doc. 171, at 30. Instead, the district court held that Presidential immunity from prosecution for official acts does not exist at all. *Id.* For the same reason, the district court did not conduct factfinding on this subject or give President Trump an opportunity to present facts regarding the official nature of his conduct prior to a potential trial. *See Blassingame v. Trump*, 87 F.4th 1, 5 (D.C. Cir. 2023).

President Trump timely appealed the district court’s judgment to the D.C. Circuit. The district court stayed proceedings in the district court pending the outcome of the appeal. D. Ct. Doc. 186, at 2 (quoting *Blassingame*, 87 F.4th at 29).

On December 11, 2023, the Special Counsel filed a petition for certiorari before judgment and a motion to expedite in this Court, seeking this Court’s immediate review of President Trump’s claims on an extraordinarily expedited basis. Pet. in No. 23-624, at 2. On December 22, 2023, this Court denied the request. Dec. 22, 2023, Order in No. 23-624.

The Special Counsel was, however, able to convince a panel of the D.C. Circuit to hear President Trump’s claims on an extremely accelerated basis, giving President Trump just ten days to draft and file his opening brief, only three days to file his reply brief, and setting the case for oral argument one week later, on January 9, 2024. C.A. Doc. 2031419, 2032082. In his brief to the D.C. Circuit, President Trump requested, “[i]f the Court affirms the district court in any respect, ... that the Court stay the issuance of its mandate pending further review, including possible en banc proceedings and/or Supreme Court review.” C.A. App. Br. 55. The Special Counsel, by contrast, “request[ed] the Court to issue the mandate five days after the entry of judgment,” citing (as it had done to this Court) the supposed, but nonexistent, “imperative public importance of a prompt resolution of this case.” C.A. Resp. Br. 65-66.

On February 6, 2024, the D.C. Circuit panel issued a per curiam opinion ruling against President Trump’s immunity claims, providing an analysis that overlooks and mischaracterizes many of President Trump’s major arguments. App’x 1A-57A. On the same day, the D.C. Circuit entered a judgment directing the clerk to issue the mandate to the district court in four business days if President Trump did not file an application in this Court to stay the mandate in that time. *Id.* at 58A. The D.C. Circuit’s judgment directs the Clerk to issue the mandate after February 12, 2024, unless President Trump “notifies the Clerk in

writing that he has filed an application with the Supreme Court for a stay of the mandate pending the filing of a petition for a writ of certiorari,” in which case “the Clerk is directed to withhold issuance of the mandate pending the Supreme Court’s final disposition of the application.” *Id.* The D.C. Circuit further directed that “[t]he filing of a petition for rehearing or rehearing en banc will not result in any withholding of the mandate.” *Id.*

This order departs from the D.C. Circuit’s ordinary procedures, which provide, consistent with Federal Rule of Appellate Procedure 41(b), that “the court ordinarily will include as part of its disposition an instruction that the clerk withhold issuance of the mandate until 7 days after the expiration of the time for filing a petition for rehearing or a petition for rehearing en banc and, if such petition is timely filed, until 7 days after disposition thereof.” D.C. Cir. R. 41(a)(1).

On February 12, 2024, as required by the D.C. Circuit’s judgment, President Trump filed this application to stay the D.C. Circuit’s mandate pending disposition of his petition for certiorari. President Trump also asks this Court to stay the D.C. Circuit’s mandate pending resolution of his planned petition for en banc consideration in that court.

ARGUMENT

“The standards for granting a stay of mandate pending disposition of a petition for certiorari are well established.” *White v. Florida*, 458 U.S. 1301, 1302 (1982) (Powell, J., in chambers). “[1] There must be a reasonable probability that four members of the Court would consider the underlying issue sufficiently meritorious for the grant of certiorari or the notation of probable jurisdiction; [2] there must be a significant possibility of reversal of the lower court’s decision; and [3] there must be a likelihood that irreparable harm will result if that decision is not stayed.” *Id.* (quoting *Times-Picayune Publ’g Corp. v. Schulingkamp*, 419 U.S. 1301, 1305 (1974) (Powell, J., in chambers)); accord *Karcher v. Daggett*, 455 U.S. 1303 (1982) (Brennan, J., in chambers); *Whalen v. Roe*, 423 U.S. 1313, 1316-17 (1975) (Marshall,

J., in chambers). In addition, “in a close case it may be appropriate to ‘balance the equities’—to explore the relative harms to applicant and respondent, as well as the interests of the public at large.” *Karcher*, 455 U.S. at 1305–06.

Further, a stay is more likely warranted where, as here, “[t]he underlying issue in th[e] case ... has not heretofore been passed upon by this Court and is of continuing importance.” *McLeod v. Gen. Elec. Co.*, 87 S. Ct. 5, 6 (1966) (Harlan, J.). Thus, “the existence of an important question not previously passed on by this Court” is a factor that weighs in favor of a stay. *Shiffman v. Selective Serv. Bd. No. 5*, 88 S. Ct. 1831, 1832 n.3 (1968) (Douglas, J., dissenting); *Certain Named and Unnamed Non-Citizen Children and Their Parents v. Texas*, 448 U.S. 1327, 1332 (1980) (Powell, J., in chambers) (holding that a case that “presents novel and important issues” warrants a stay). Where the appeal “raises a difficult question of constitutional significance” that “also involves a pressing national problem,” a stay is warranted. *Texas*, 448 U.S. at 1331.

Here, each of these traditional factors counsels in favor of granting the stay.

I. There Is a Reasonable Probability That This Court Will Grant Certiorari.

The appeal addresses two issues: whether the President possesses absolute immunity from criminal prosecution for his official acts, and whether the impeachment and acquittal of a President forecloses a subsequent criminal prosecution of the President for the same and/or closely related conduct. The Court is likely to grant a petition for certiorari to review these questions. Certiorari is warranted when “a United States court of appeals has decided an important question of federal law that has not been, but should be, settled by this Court, or has decided an important federal question in a way that conflicts with relevant decisions of this Court.” Sup. Ct. R. 10(c). Both criteria are satisfied here.

A. The Case Raises Important Questions of Federal Law.

First, this case involves “important question[s] of federal law that ha[ve] not been, but should be, settled by this Court.” *Id.* As the Special Counsel advised this Court on December 11, 2023, “[t]his case presents a fundamental question at the heart of our democracy: whether a former President is absolutely immune from federal prosecution” for his official acts. Pet. for Cert. Before Judgment, *United States v. Trump*, No. 23-624 (U.S. filed Dec. 11, 2023), at 2 (“Pet. in No. 23-624”). “This case involves a paradigmatic issue of imperative public importance: the amenability to criminal prosecution of a former President of the United States for [official] conduct undertaken during his presidency.” *Id.* at 10. President Trump’s claim of absolute immunity from criminal prosecution for a President’s official acts “is a quintessential example of ‘an important question of federal law that has not been, but should be, settled by this Court.’” *Id.* at 12 (quoting Sup. Ct. R. 10(c)).

As the Special Counsel urged, “[i]t is of imperative public importance that [President Trump’s] claims of immunity be resolved by this Court,” *id.* at 2, and “only this Court can definitively resolve them,” *id.* at 3. “[T]his Court” should “grant review” and “resolve the important immunity question presented here.” *Id.* at 10. “It requires no extended discussion to confirm that this case ... is at the apex of public importance.” *Id.* at 10. “The public importance of the issues presented” in this case “merit this Court’s intervention.” *Id.* at 12 (quoting *United States v. Nixon*, 418 U.S. 683, 687 (1974)).

On this point, the parties agree. “An erroneous denial of a claim of presidential immunity from criminal prosecution unquestionably warrants this Court’s review.” Br. in Opposition in No. 23-624 (U.S. filed Dec. 20, 2023), at 3 (“BIO in No. 23-624”).

The public importance of Presidential immunity cannot be overstated. As stated above, an absence of criminal immunity for official acts threatens the very ability of the President to function properly. Any decision by the President on a politically controversial

question would face the threat of indictment by the opposing party after a change in administrations. All presidential decisions would be exposed to undue, wrongful pressure from opposing political forces, under a threat of indictment after the President has left office. The D.C. Circuit's denial of immunity thus threatens every future President with both attempts of *de facto* extortion and blackmail while in office, and years of post-office trauma at the hands of his or her political opponents. The threat of prosecution will become a political cudgel used to influence the most sensitive and important Presidential decisions with the menace of personal vulnerability after leaving office. The D.C. Circuit's categorical denial of immunity would forever undermine the independence, authority, and decisiveness of the Presidency. The more consequential the decision, the more likely that political opponents will use the threat of wrongful criminal prosecution to bully and extort the President, gravely weakening the independence of the Presidency, and thus our country as a whole. Cycles of recrimination are inevitable, thrusting the most sensitive and vital Presidential decisions in the Nation's future into a "context" that will be "acrid with the smell of threatened" criminal prosecution. *Morrison v. Olson*, 487 U.S. 654, 702 (1988) (Scalia, J., dissenting). All this directly contradicts the Founders' careful design, as discussed below.

B. The D.C. Circuit's Opinion Conflicts With Decisions of This Court.

The D.C. Circuit's decision also warrants review because it decided important federal questions "in a way that conflicts with relevant decisions of this Court." Sup. Ct. R. 10(c). As discussed below, *infra* Part II, the D.C. Circuit's decision conflicts with *Marbury v. Madison*, *Mississippi v. Johnson*, *Nixon v. Fitzgerald*, and a host of other decisions of this Court.

II. There Is a Significant Possibility of Reversal.

The second factor considers whether there is "a significant possibility of reversal of the lower court's decision." *White*, 458 U.S. at 1302. A "fair prospect of reversal" suffices. *Karcher*, 455 U.S. at 1306. The factor is satisfied when "[t]he issues underlying this case are

important and difficult,” and it does not require “anticipating [the Court’s] views on the merits.” *Times-Picayune Publ’g*, 419 U.S. at 1309. A stay is appropriate if “petitioner’s position ... cannot be deemed insubstantial,” *McLeod*, 87 S. Ct. at 6, and the Court need not “think it more probable than not that” reversal will occur, *Texas*, 448 U.S. at 1332.

Here, the D.C. Circuit’s opinion mischaracterizes this Court’s case law and commits a series of fundamental errors. A full accounting of these errors must await merits briefing, but President Trump highlights a series of independently sufficient bases for reversal here.

A. The Executive Vesting Clause and *Marbury v. Madison*.

First, the panel opinion’s analysis of the Executive Vesting Clause and *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803), is profoundly wrong.

The Executive Vesting Clause provides that “[t]he executive Power shall be vested in a President of the United States of America.” U.S. CONST. art. II, § 1, cl. 1. For another branch to arrogate the “executive Power” to itself, or to purport to dictate how the President must exercise that authority, is a core violation of the separation of powers. As a direct corollary, the Clause provides that the Judicial Branch cannot sit in judgment directly over the President’s official acts, and that any attempt to do so violates the separation of powers.

In *Marbury v. Madison*, Chief Justice Marshall described this doctrine as foundational and self-evident. “By the constitution of the United States, the President is invested with certain important political powers, in the exercise of which he is to use his own discretion, and is accountable only to his country in his political character, and to his own conscience.” 5 U.S. at 165–66. When it comes to the President’s official acts, “whatever opinion may be entertained of the manner in which executive discretion may be used, still there exists, and can exist, no power to control that discretion.” *Id.* at 166. “[N]othing can be more perfectly clear than that” the President’s discretionary “acts are only politically examinable.” *Id.*

“Questions ... which are, by the constitution and laws, submitted to the executive, can never be made in this court.” *Id.* at 170. The President’s official acts, therefore, “*can never be examinable by the courts.*” *Id.* at 166 (emphasis added).

Consistent with this opinion, an unbroken tradition from *Marbury* to the present holds that Article III courts lack authority to sit in judgment directly over a President’s official acts. In 1833, citing *Marbury*, Justice Story wrote that “[i]n the exercise of his political powers [the President] is to use his own discretion, and is accountable only to his country, and to his own conscience. His decision, in relation to these powers, is subject to no control; and his discretion, when exercised, is conclusive.” 3 J. STORY, COMMENTARIES ON THE CONSTITUTION OF THE UNITED STATES, ch. 37, § 1563 (1833), <https://lonang.com/library/reference/story-commentaries-us-constitution/sto-337/>.

In *Mississippi v. Johnson*, this Court, citing *Marbury*, held that Article III courts lack jurisdiction to enter an injunction directly against the President in the exercise of his official duties. 71 U.S. 475, 499 (1866). “An attempt on the part of the judicial department of the government to enforce the performance of such duties by the President might be justly characterized, in the language of Chief Justice Marshall, as ‘an absurd and excessive extravagance.’” *Id.* (quoting *Marbury*, 5 U.S. at 170). “[T]his court has no jurisdiction of a bill to enjoin the President in the performance of his official duties.” *Id.* at 501.

In 1948, this Court wrote that “whatever of this order emanates from the President is not susceptible of review by the Judicial Department.” *Chi. & S. Air Lines v. Waterman S.S. Corp.*, 333 U.S. 103, 112 (1948). The Judicial Branch cannot “require [the President] to exercise the ‘executive Power’ in a judicially prescribed fashion.” *Franklin v. Massachusetts*, 505 U.S. 788, 826 (1992) (Scalia, J., concurring in part and concurring in the judgment). “It

is incompatible with his constitutional position that [the President] be compelled personally to defend his executive actions before a court.” *Id.* at 827.

Thus, Article III courts lack jurisdiction to enter an injunction directly against the President in the exercise of his official responsibility, and no court has ever entered a declaratory judgment against the President in his official acts. The D.C. Circuit observed that “in *Franklin*, ... [t]he plurality opinion of the Court concluded that ‘in general, this court has no jurisdiction of a bill to enjoin the President in the performance of his official duties,’ and a majority of the Justices in fact subscribed to this position.” *Swan v. Clinton*, 100 F.3d 973, 977 (D.C. Cir. 1996) (quoting *Franklin*, 505 U.S. at 802-03). “With regard to the President, courts do not have jurisdiction to enjoin him, and have never submitted the President to declaratory relief.” *Newdow v. Roberts*, 603 F.3d 1002, 1013 (D.C. Cir. 2010). This is also the consistent litigation position of the U.S. Department of Justice, which oversees the Special Counsel. *See, e.g.*, U.S. Dep’t of Justice, Reply Brief for Pet’r, *In re Trump*, No. 18-2486 (4th Cir. filed Feb. 21, 2019), at 4-6 (invoking “the separation-of-powers principle that ‘courts have no jurisdiction of a bill to enjoin the President in the performance of his official duties’”) (quoting *Mississippi*, 71 U.S. at 501) (cleaned up); U.S. Dep’t of Justice Memorandum, Doc. 28 in *Missouri v. Biden*, No. 4:21-cv-00287-AGF (E.D. Mo. filed June 4, 2021) (same).

“Since *Mississippi*, the federal courts have continued this practice *without exception* and have not sustained a single injunction against the President in his official capacity.” *In re Trump*, 958 F.3d 274, 297–98 (4th Cir. 2020), *cert. granted, judgment vacated sub nom. Trump v. D.C.*, 141 S. Ct. 1262 (2021) (Wilkinson, J., dissenting) (italics in original).

To be sure, Article III courts sometimes review the validity of the official acts of *subordinate* executive officials below the President, *see, e.g.*, *Youngstown Sheet & Tube Co. v.*

Sawyer, 343 U.S. 579 (1952), and such review may reflect *indirectly* on the lawfulness of the President’s own acts or directives. But the authority of judicial review of the official acts of subordinate officers has never been held to extend to the official acts of the *President himself*. Rather, there is an “unbroken historical tradition ... implicit in the separation of powers’ that a President may not be ordered by the Judiciary to perform particular Executive acts.” *Clinton v. Jones*, 520 U.S. 681, 719 (1997) (Breyer, J., concurring) (quoting *Franklin*, 505 U.S. at 827 (Scalia, J., concurring in part and concurring in the judgment)).

These two lines of precedent—that courts may not sit in judgment over a President’s official acts, but they may review the validity of the acts of, and enjoin, *subordinate* executive officials—both originate in the decisions of Chief Justice Marshall and have coexisted in harmony for over two centuries. The distinction they reflect is not one of mere formalism. “*Youngstown* ... underscores the constitutional necessity of the judiciary separating the President, as chief executive, from his subordinate officers within the executive branch.” *In re Trump*, 958 F.3d at 301 (Wilkinson, J., dissenting). “This distinction, in fact, makes all the difference.... First, more formally, when a federal court enjoins the conduct of a subordinate executive officer, it may frustrate the President’s will in a specific instance, but it does not seize the very reins of the executive branch by exercising control over ‘the executive department’ itself.” *Id.* (quoting *Mississippi*, 71 U.S. at 500). “Second, more functionally, the President is ‘entrusted with supervisory and policy responsibilities of utmost discretion and sensitivity,’ and how he decides to allocate his energies and attentions in an official capacity is itself owed constitutional protection.” *Id.* (quoting *Fitzgerald*, 457 U.S. at 750). “By contrast, when the judiciary enjoins subordinate executive officers, ... the level of intrusion into the executive branch’s fluid operation is far less severe.” *Id.*

Accordingly, the Executive Vesting Clause and the separation of powers prevent Article III courts from sitting in judgment directly over the President’s official acts. Under this principle, no Article III court has jurisdiction to enter an injunction against the President, and no court has even ventured to enter a *declaratory judgment* against the President opining on the validity of his official acts. *Newdow*, 603 F.3d at 1013. *A fortiori*, the authority asserted by the lower courts here—to put a President on trial, enter a criminal judgment against him, and punish him with imprisonment or other criminal penalties, all for his *official acts*—constitutes a core violation of the separation of powers. *Cf. Martin v. Mott*, 25 U.S. (12 Wheat.) 19, 32-33 (1827) (Story, J.) (holding that, “[w]hen the President exercises an authority confided to him by law,” his official conduct cannot “be passed upon by a jury” or “upon the proofs submitted to a jury”). Accordingly, the Impeachment Judgment Clause explicitly presupposes that, absent impeachment and conviction by the U.S. Senate, a President cannot be prosecuted for his official acts. U.S. CONST. art. I, § 3, cl.7.

The D.C. Circuit’s opinion offers a series of arguments to distinguish *Marbury* and the subsequent line of authority. None is convincing.

First, the opinion notes that “*Marbury* distinguished between two kinds of official acts: discretionary and ministerial.” App’x 21A. It admits that the President’s “discretionary acts ... ‘can never be examinable by the courts.’” *Id.* (quoting *Marbury*, 5 U.S. at 166). But it likens the President’s alleged duty to comply with each and every federal criminal law—a duty that no court has ever upheld—to a “ministerial” duty of a subordinate official that admits of no discretion. *Id.* at 22A (holding that “*Marbury* thus makes clear that Article III courts may review certain kinds of official acts — including those that are legal in nature”);

see also id. at 25A (holding that “actions” that “allegedly violated generally applicable criminal laws² ... were not properly within the scope of his lawful discretion”).

This characterization of a “ministerial” duty under *Marbury* as any duty that is “legal in nature,” *id.*, cannot be squared with *Marbury* itself. What renders a duty “ministerial” is not whether it is “legal in nature,” *id.*, but whether it admits of any *discretion* (which is why “ministerial” duties are distinguished from “discretionary” acts, *id.*). A “ministerial act” is one—like the delivery of an already-signed commission—where there is “a precise course accurately marked out by law, [which] is to be strictly pursued.” *Marbury*, 5 U.S. at 158. A ministerial duty arises when the legislature “direct[s]” an official “peremptorily to perform certain acts.” *Id.* at 166. By contrast, in any case “in which the executive possesses a constitutional or legal discretion,” *id.*, the official act is not ministerial. As the Court held in *Mississippi*, “[a] ministerial duty” is “a simple, definite duty” in “which nothing is left to discretion.” 71 U.S. at 498. If there is any “exercise of judgment” involved, the duty is not ministerial. *Id.* at 499. Even the panel opinion admits that a “ministerial” duty is one “in which ‘nothing [i]s left to discretion.’” App’x 23A (quoting *Mississippi*, 71 U.S. at 498).

² The D.C. Circuit’s unsupported assumption that all “generally applicable criminal laws” apply to the President in his official acts cannot be squared with *Franklin*, which held that “[w]e would require an express statement by Congress before assuming it intended to subject the President’s performance of his statutory duties to be reviewed for abuse of discretion.” *Franklin*, 505 U.S. at 801; *see also Public Citizen v. U.S. Dep’t of Justice*, 491 U.S. 440, 466 (1989) (“[W]e are loath to conclude that Congress intended to press ahead into dangerous constitutional thickets in the absence of firm evidence that it courted those perils.”). This Court requires an “express statement” before it will construe even a *civil* statute to grant judicial review over the President’s official acts, yet the D.C. Circuit assumes that *every* “generally applicable” federal criminal statute must be construed to cover the President in the exercise of his official responsibilities. Contrary to this assumption, statutes providing for judicial review of a President’s official acts present, at very least, “dangerous constitutional thickets” and grave “perils,” requiring an extremely clear statement of Congress’s intent to cover the President. *Public Citizen*, 491 U.S. at 466.

Here, even a moment’s reflection demonstrates that avoiding violations of federal criminal law involves the “exercise of judgment,” *Mississippi*, 71 U.S. at 499, and of “executive discretion.” *Marbury*, 5 U.S. at 166. A statute that imposes a “ministerial” duty is one that commands a specific, *affirmative* course of conduct that admits of no discretion in its execution. Criminal statutes do not command specific, affirmative courses of action; rather, they *prohibit* certain specified conduct, leaving those covered with a wide range of discretion in how to conduct themselves in compliance with such prohibitions. Given a prohibition in a criminal statute, a covered individual has a virtually infinite array of options on structuring his or her conduct to avoid violating the statute—thus rendering compliance “discretionary” within the meaning of *Marbury* and its progeny.

In fact, the government itself has contended that complying with a constitutional prohibition, the Emoluments Clause, is obviously not ministerial because it “requires ample ‘exercise of judgment.’” *In re Trump*, Reply Brief, at 5. This point is indisputable:

[O]nce an official responsibility involves the ‘exercise of judgment,’ it is a non-ministerial official duty. That describes compliance with the Emoluments Clauses.... [C]ompliance in practice is not a “simple, definite” endeavor; rather, it involves seemingly innumerable judgment calls about how a President must organize his financial interests, sequester his real assets, or restructure his holdings. To put a finer point on it, compare these sorts of choices with what was required in the quintessential example of a ministerial duty: the delivery of the commission in *Marbury v. Madison*. There, *Marbury*’s commission had been signed and sealed, but not delivered. The Secretary of State was required by law to just hand over the parchment, a function that required no judgment and where nothing was left to discretion. Such a rote errand is different in kind from the sort of discretionary conduct at issue here.

In re Trump, 958 F.3d at 299–300 (Wilkinson, J., dissenting). Likewise, “compliance in practice” with federal criminal statutes “is not a ‘simple, definite’ endeavor,” *id.*—especially the vague, broadly phrased statutes charged in the indictment here, such as 18 U.S.C. § 1512(c)(2).

Moreover, the government contends that these statutes purport to impose duties on the President as he exercises his official responsibilities in overseeing the affairs of the Department of Justice, deliberating about Cabinet-level appointments, communicating with members of Congress and state officials about matters of enormous federal concern, communicating with the public on matters of public concern through official government channels, etc.—all of which are obviously *discretionary*, not “ministerial,” responsibilities, for which the President possesses discretion on how to carry out those duties and responsibilities. Indeed, virtually all the President’s official responsibilities involve the exercise of discretion, which is perhaps why the federal courts “have ... never attempted to exercise power to order the President to perform a ministerial duty.” *Swan*, 100 F.3d at 978.

Second, the panel opinion reasons that “[t]he cases following *Marbury* confirm that we may review the President’s actions when he is bound by law, including by federal criminal statutes.” App’x 22A. But all the cases cited in the opinion do not involve review of “the President’s actions,” *id.*, but review of the actions of *subordinate* federal officials or others implementing federal programs, not the President himself. *Id.* at 22A-23A. As the opinion admits, *Little v. Barreme*, 6 U.S. (2 Cranch) 170, 177-79 (1804), reviewed the acts of a private ship’s captain, not the President, App’x 22A; *Kendall v. United States ex rel. Stokes*, 37 U.S. 524, 612-13 (1838), “reviewed the official acts of the Postmaster General, not the President,” App’x 22A; and *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952), reviewed the acts of the Secretary of Commerce, not the President, App’x 23A. None of these cases provides any authority for Article III courts to sit in judgment directly over the *President’s* official acts; and none contradicts the still-binding holding of *Marbury* that such acts “can never be examinable by the courts.” 5 U.S. at 166.

In fact, the opinion concedes that “*Marbury* and its progeny exercised jurisdiction only over subordinate officers, not the President himself,” App’x 24A, and that “[t]he writ in *Marbury* was brought against the Secretary of State; in *Little* against a commander of a ship of war; in *Kendall* against the postmaster general; in *Youngstown* against the Secretary of Commerce.” *Id.* But the opinion then pivots—in a dizzying *non sequitur*—to assert that “the Supreme Court has unequivocally explained” that “[n]o man in this country is so high that he is above the law.” *Id.* (quoting *United States v. Lee*, 106 U.S. 196, 220 (1882)).

The D.C. Circuit’s reliance on the highly generalized maxim that “no man ... is above the law,” *id.*, fails to provide a plausible basis for it to disregard *Marbury*, *Mississippi*, or its own precedents in *Swan* and *Newdow*. Those cases, and the separation of powers reflected in Article II, are part of “the law” that binds the courts. In *Fitzgerald*, this Court held that the contention that recognizing absolute Presidential immunity “places the President ‘above the law’” is “rhetorically chilling but wholly unjustified.” 457 U.S. at 758 n.41. As the panel opinion overlooks, “[t]he remedy of impeachment demonstrates that the President remains accountable under law for his misdeeds in office.” *Id.* This is especially true here, where the Impeachment Judgment Clause specifically *authorizes* the criminal prosecution of a President, but only after the crucial structural check of impeachment and conviction. U.S. CONST. art. I, § 3, cl. 7. “It is simply error to characterize an official as ‘above the law’ because a particular remedy is not available against him.” *Fitzgerald*, 457 U.S. at 758 n.41. Indeed, the Constitution—including the Executive Vesting Clause—is the most fundamental “law,” and it dictates that Article III courts lack authority to sit in judgment over a President’s official acts. *Marbury*, 5 U.S. at 166. “[T]he federal judiciary, no less than the President, is subject to the law. And here the federal judiciary has sorely overstepped its proper bounds.”

In re Trump, 958 F.3d at 291 (Wilkinson, J., dissenting); *see also, e.g., Butz v. Economou*, 438 U.S. 478, 506 (1978).

Next, the panel opinion notes that “[t]he President does not enjoy absolute immunity from criminal subpoenas issued by state and federal prosecutors and may be compelled by the courts to respond.” App’x 24A (citing *United States v. Burr*, 25 F. Cas. 30, 33-34 (C.C.D.Va. 1807)). But compelling the President to provide *information* in response to a criminal subpoena is a far cry from putting him on trial, entering judgment against him, and potentially subjecting him to imprisonment for his official acts. Thus, Chief Justice Marshall, the author of *Burr*, 25 F. Cas. 33-34, wrote just a few years earlier that the President’s official acts “can never be examinable by the courts.” *Marbury*, 5 U.S. at 166.³

B. “The Presuppositions of Our Political History.”

Below, President Trump argued that “[p]erhaps the most telling indication of a severe constitutional problem’ with this ‘wholly unprecedented’ prosecution ‘is a lack of historical precedent to support it.” C.A. App.Br. 7 (quoting *Seila Law, LLC v. CFPB*, 140 S. Ct. 2183, 2201 (2020)); *see also id.* at 17-18. “The unbroken tradition of not exercising the supposed formidable power of criminally prosecuting a President for official acts—despite ample motive and opportunity to do so, over centuries—implies that the power does not exist.” *Id.* at 18 (citing, *inter alia*, *NFIB v. OSHA*, 595 U.S. 109, 119 (2022) (per curiam); *Free Enter. Fund v. Pub. Co. Accounting Oversight Bd.*, 561 U.S. 477, 505 (2010)). “[T]he longstanding

³ The panel opinion’s discussion of legislative and judicial immunity, App’x 25A-30A, misapprehends this Court’s case law, but also overlooks a fundamental point. At common law, immunity from criminal prosecution was more fundamental to the doctrine of official immunity than immunity from civil liability. As this Court has recognized, “the privilege” of legislative immunity “was not born primarily of a desire to avoid private suits ..., but rather to prevent intimidation by the executive and accountability before a possibly hostile judiciary.” *United States v. Johnson*, 383 U.S. 169, 180–81 (1966). Preventing “the instigation of *criminal charges* against critical or disfavored legislators” was the “chief fear” that led to the recognition of legislative immunity. *Id.* at 182 (emphasis added).

‘practice of the government,’ can inform our determination of ‘what the law is.’” *N.L.R.B. v. Noel Canning*, 573 U.S. 513, 525 (2014) (quoting *McCulloch v. Maryland*, 17 U.S. 316, 401 (1819), and *Marbury*, 5 U.S. at 177). “That principle is neither new nor controversial,” and this Court’s “cases have continually confirmed [this] view.” *Id.* (citing *Mistretta v. United States*, 488 U.S. 361, 401 (1989), and eight other cases from 1803 to 1981). Consulting “the presuppositions of our political history,” C.A. App.Br. 17 (quoting *Fitzgerald*, 457 U.S. at 749), President Trump argued that this 234-year-long, unbroken “constitutional practice ... tends to negate the existence of the ... power asserted here.” *Id.* at 18 (quoting *Printz v. United States*, 521 U.S. 898, 918 (1997)).

The opinion below overlooks this argument. It cites *Seila Law* only for the proposition that the President is “elected by the entire Nation,” App’x 39A, and it does not cite or discuss *NFIB*, *Free Enterprise Fund*, *Printz*, or similar cases. It also declines to grapple with President Trump’s long series of real-world, historical examples of former Presidents accused of criminal behavior through their official acts—none of whom, in 234 years, ever faced prosecution, despite ample political motive and practical opportunity to charge them.

“American history abounds with examples of Presidents who were accused by political opponents of committing crimes through their official acts.” C.A. App.Br. 17. “These include, among many others, John Quincy Adams’ alleged ‘corrupt bargain’ in appointing Henry Clay as Secretary of State;⁴ President George W. Bush’s allegedly false claim to Congress that Saddam Hussein possessed stockpiles of ‘weapons of mass destruction,’ which led to war in which thousands were killed;⁵ and President Obama’s alleged authorization of a drone strike

⁴ See, e.g., Jessie Kratz, *The 1824 Presidential Election and the “Corrupt Bargain”*, National Archives (Oct. 22, 2020), <https://prologue.blogs.archives.gov/2020/10/22/the-1824-presidential-election-and-the-corrupt-bargain/>.

⁵ See, e.g., Gary L. Gregg II, *George W. Bush: Foreign Affairs*, UVA Miller Center, <https://millercenter.org/president/-gwbush/foreign-affairs>; Tim Arango, *Ex-Prosecutor’s Book*

that targeted and killed a U.S. citizen abroad (and his teenage son, also a U.S. citizen).⁶ *Id.* They also include, among many other examples, President Reagan’s alleged involvement in the Iran-Contra scandal,⁷ President Clinton’s last-minute pardon of fugitive financier Marc Rich,⁸ President Clinton’s repeated use of airstrikes in the Middle East in August and November 1998 in an alleged attempt to distract attention from the Monica Lewinsky scandal,⁹ President Biden’s egregious mismanagement of the United States’ border security, and President Biden’s alleged “material support for terrorism” through the funding of the UNRWA despite its documented history of direct support for terrorism.¹⁰ From the earliest

Accuses Bush of Murder, N.Y. Times (July 7, 2008), <https://www.nytimes.com/2008/07/07/business/media/07bugliosi.html>.

⁶ See, e.g., Spencer Ackerman, *US Cited Controversial Law in Decision to Kill American Citizen by Drone*, The Guardian (June 23, 2014), <https://www.theguardian.com/world/2014/jun/23/us-justification-drone-killing-american-citizen-awlaki>.

⁷ The Editors, *Iran-Contra Scandal Begins with Shredded Documents*, History (Nov. 13, 2009), <https://www.history.com/this-day-in-history/oliver-north-starts-feeding-documents-into-the-shredding-machine>.

⁸ Andrew C. McCarthy, *The Wages of Prosecuting Presidents for their Official Acts*, Nat’l Review (Dec. 9, 2023), <https://www.nationalreview.com/2023/12/the-wages-of-prosecuting-presidents-over-their-official-acts/> (reporting first-hand that “[i]n 2001 ... the Justice Department considered criminal charges against former president Clinton, and even a theory that Hillary Clinton may have conspired with him, in connection with his final-day corrupt pardons,” by which federal prosecutors were “righteously appalled,” but “the Bush Justice Department would not cross that Rubicon”).

⁹ See, e.g., *World Media Troubled by Clinton’s Timing in Airstrikes*, CNN (Dec. 18, 1998), <http://edition.cnn.com/WORLD/meast/9812/18/iraq.press/>; Francis X. Clines and Steven Lee Myers, *Attack on Iraq; The Overview; Impeachment Vote in House Delayed As Clinton Launches Iraq Air Strike, Citing Military Need to Move Swiftly*, N.Y. Times (Dec. 17, 1998), <https://www.nytimes.com/1998/12/17/world/attack-iraq-overview-impeachment-vote-house-delayed-clinton-launches-iraq-air.html>.

¹⁰ See, e.g., Jason Willick, *The Eyebrow-Raising Line in the Trump Immunity Opinion*, Wash. Post (Feb. 7, 2024), <https://www.washingtonpost.com/opinions/2024/02/07/trump-immunity-decision-disclaimer/>; Andrew McCarthy, *Thoughts on Biden’s Funding of Terror-Sponsoring UNRWA and D.C. Circuit’s Delay on Trump Immunity*, Nat’l Review (Jan. 31, 2024), <https://www.nationalreview.com/corner/thoughts-on-bidens-funding-of-terror-sponsoring-unrwa-and-d-c-circuits-delay-on-trump-immunity/> (“When President Biden insisted on restarting funding for UNRWA, to the tune of over \$1 billion since 2021, there was abundant, well-known evidence, going back decades, that UNRWA provides material support to terrorism. It was not just a hypothetical possibility that Biden’s funding might end up

days of the Republic until today, American history is littered with examples of allegedly “criminal” behavior by Presidents in their official acts, behavior that was never prosecuted.¹¹

The panel opinion ignores the long history of real-world examples of Presidents engaging in actual behavior that political opponents viewed as egregious and “criminal.” Instead, keying on the Special Counsel’s arguments, the panel fretted about lurid hypotheticals that have never occurred in 234 years of history, almost certainly never will occur, and would virtually certainly result in impeachment and Senate conviction (thus authorizing criminal prosecution) if they *did* occur—such as a hypothetical President corruptly ordering the assassination of political rivals through “SEAL Team Six.” D.C. Cir. Oral Arg Tr. 10:19-21. Such hypotheticals provide fodder for histrionic media coverage, but they are a poor substitute for legal and historical analysis. Confronted with *real-world* hypotheticals—such as President Obama’s killing of U.S. citizens by drone strike—the Special Counsel conceded below that Presidential immunity from criminal prosecution for official acts likely exists and would apply, directly contradicting the “categorical,” App’x 20A, holdings to the contrary of both the appellate panel and the trial court. D.C. Cir. Oral Arg.

facilitating Hamas’s operations. There were notorious cases over the years of UNRWA terror support.”); The Editors, *Hamas Was Right Under Unrwa’s Nose*, Wall St. J. (Feb. 11, 2024), https://www.wsj.com/articles/hamas-was-right-under-unrwas-nose-tunnels-gaza-israel-war-f715d219?mod=opinion_lead_pos2 (“Israel has provided evidence that 12 Unrwa employees took part in the Oct. 7 massacre, and that 1,200 are affiliated with or members of Hamas and Islamic Jihad.”).

¹¹ Similar examples pervade American history—consider, for example, President Adams’ jailing of political opponents under the Alien and Sedition Acts, *see* The Editors, *Alien and Sedition Acts*, History (June 21, 2023), <https://www.history.com/topics/early-us/alien-and-sedition-acts>; President Jackson’s treatment of the Cherokee and other tribes in defiance of this Court’s rulings, *see* The Editors, *Indian Treaties and the Removal Act of 1830*, Office of the Historian, U.S. Department of State, <https://history.state.gov/milestones/1830-1860/indian-treaties>; and President Polk’s allegedly false statement to Congress that Mexico had “invaded our territory and shed American blood on American soil” at the outbreak of Mexican-American War, which then-Congressman Abraham Lincoln challenged through the famous “Spot Resolutions,” The Editors, *Mexican-American War*, Encyclopaedia Britannica (Jan. 2, 2024), <https://www.britannica.com/event/Mexican-American-War/Invasion-and-war>.

Tr. 49:18-22 (Special Counsel admitting that a “drone strike” where “civilians were killed ... might be the kind of place in which the Court would properly recognize some kind of immunity”). Further, the logical presupposition of such speculative hypotheticals—*i.e.*, that the Founders supposedly *must have* intended that no alleged Presidential misdeed could ever escape prosecution—is plainly incorrect and contradicts the basic premises of a system of separated powers. “While the separation of powers may prevent us from righting every wrong, it does so in order to ensure that we do not lose liberty.” *Morrison*, 487 U.S. at 710 (Scalia, J., dissenting).

Thus, when the panel *did* get around to addressing actual history, App’x 35A-37A, it drew precisely the wrong conclusions. The panel somehow proposed that there is no reason to fear “a torrent of politically motivated prosecutions” in the future, because “this is the first time since the Founding that a former President has been federally indicted,” and so the prosecution of President Trump is sure to be a historical one-off. App’x 35A. This reasoning is unpersuasive to followers of recent American political history. For example, “[i]n the 209 years from 1789 to 1998, there was one impeachment of a President—Andrew Johnson in 1868.” BIO in No. 23-624, at 33. “In the last 25 years, there have been three, with a fourth currently under consideration by the U.S. House of Representatives.” *Id.* “Presidential impeachment is changing from virtually unthinkable to a fixture of interbranch politics.” *Id.* Moreover, “impeachment faces formidable structural checks—it must be voted by a majority of the House, with a supermajority of the Senate required to convict. Criminal prosecution, by contrast, requires only the action of a single enterprising prosecutor and a compliant grand jury.” *Id.*

For all these reasons, the “presuppositions of our political history” decisively favor the recognition of Presidential immunity from criminal prosecution for acts within the “outer perimeter of the President’s official responsibilities.” *Fitzgerald*, 457 U.S. at 745, 756.

C. The Likelihood of Chilling Presidential Action.

In *Fitzgerald*, this Court held that the threat of future *civil* liability for official acts—including years after the President left office—could deter the President from the “bold and unhesitating action” required for his official responsibilities. 457 U.S. at 745. In so holding, “[t]his Court ... weighed concerns of public policy, especially as illuminated by our history and the structure of our government.” *Id.* at 747–48. The Court emphasized that “[t]he President occupies a unique position in the constitutional scheme,” *id.* at 749, and is “entrusted with supervisory and policy responsibilities of utmost discretion and sensitivity,” *id.* at 750. “Because of the singular importance of the President’s duties, diversion of his energies by concern with private lawsuits would raise unique risks to the effective functioning of government.” *Id.* at 751. “[T]here exists the greatest public interest in providing” the President with “the maximum ability to deal fearlessly and impartially with’ the duties of his office.” *Id.* at 752 (quoting *Ferri v. Ackerman*, 444 U.S. 193, 203 (1979)). “This concern is compelling where” the President “must make the most sensitive and far-reaching decisions entrusted to any official under our constitutional system.” *Id.* “Nor can the sheer prominence of the President’s office be ignored.” *Id.* at 752–53. “[T]he President would be an easily identifiable target” for politically motivated litigation. *Id.* at 753. “Cognizance of this personal vulnerability frequently could distract a President from his public duties, to the detriment of not only the President and his office but also the Nation that the Presidency was designed to serve.” *Id.*

All the same concerns apply to the threat of *criminal prosecution* of a President for his official acts—in fact, those concerns are dramatically enhanced. The President’s “personal vulnerability,” *id.*, to criminal prosecution, with its greater stigma and far more severe penalties, provides a much graver deterrent to “bold and unhesitating action” in making “the most sensitive and far-reaching decisions entrusted to any official under our constitutional system.” *Id.* at 745, 752. The panel opinion disagrees, dismissing such concerns as unfounded. App’x 32A-35A. Its analysis is unpersuasive.

First, the panel opinion begins by drawing a comparison between the exercise of the President’s “unique” responsibilities and the deliberations of ordinary citizens called to serve as federal jurors. *Id.* (citing *Clark v. United States*, 289 U.S. 1, 16 (1933)). The opinion reasons that “[w]e cannot presume that a President will be unduly cowed by the prospect of post-Presidency criminal liability any more than a juror would be influenced by the prospect of post-deliberation criminal liability....” App’x 32A-33A. This analogy falls short. Though undoubtedly exercising an important function, a juror in a federal case does not “occup[y]” anything like the President’s “unique position in the constitutional scheme,” *Fitzgerald*, 457 U.S. at 749, and is not “entrusted with supervisory and policy responsibilities of utmost discretion and sensitivity” on a scale anything like the Presidency, *id.* at 750. “The singular importance of [a federal juror’s] duties” does not entail that “diversion of his energies by concern with [personal liability] would raise unique risks to the effective functioning of government.” *Id.* at 751. A federal juror does not “make the most sensitive and far-reaching decisions entrusted to any official under our constitutional system.” *Id.* at 752. “Nor” does a federal juror sit in a position whose “sheer prominence” cannot “be ignored.” *Id.* at 752–53. A federal juror would not “be an easily identifiable target” for politically motivated prosecution. *Id.* at 753. “Cognizance of this personal vulnerability” is unlikely to “distract a

[federal juror] from his public duties, to the detriment of not only the [juror] and his office but also the Nation that the [juror] was designed to serve.” *Id.*

The per curiam opinion also relies on an analogy with the executive staffers in *United States v. Nixon*, 418 U.S. 683 (1974). App’x 32A-33A. That reasoning is likewise unconvincing, for at least two reasons. First, *Nixon* addressed the potential deterrence to candid advice from the requirement of providing *information* in response to a criminal subpoena, *see* App’x 32A-33A, not the far more chilling threat of “personal vulnerability” to prosecution, conviction, and imprisonment. Second, *Fitzgerald* and other cases correctly reject the analogy between the President, who occupies “a unique position in the constitutional scheme,” 457 U.S. at 749, and lower-level executive officials such as aides, staff, and even Cabinet officers. “The President’s unique status under the Constitution distinguishes him from other executive officials.” *Id.* at 750. The Court has thus “long recognized” that “the scope of Presidential immunity from judicial process differs significantly from that of Cabinet or inferior officers.” *Franklin*, 505 U.S. at 826 (Scalia, J., concurring in part and concurring in judgment).

Next, the D.C. Circuit’s opinion reasons that “past Presidents have understood themselves to be subject to impeachment and criminal liability, at least under certain circumstances, so the possibility of chilling executive action is already in effect,” because “criminal prosecution of a former President is expressly authorized by the Impeachment Judgment Clause after impeachment and conviction.” App’x 33A. This argument ignores the enormous significance of the structural check that the Constitution places between a President and criminal prosecution for his official acts—*i.e.*, the requirement of impeachment and conviction by the U.S. Senate. U.S. CONST. art. I, § 3, cl.7.

The Founders were steeped in classical history and understood that politically motivated prosecutions had corroded democratic and republican governments in ancient Athens and Rome. They were thus explicitly concerned about the destructive effect on the new Republic of such politically motivated prosecutions—*i.e.*, what James Madison described as the “new fangled and artificial treasons, [which] have been the great engines, by which violent factions, the natural offspring of free governments, have usually wreaked their alternate malignity on each other.” THE FEDERALIST NO. 47 (Madison). Accordingly, the Founders exercised care when they consciously departed from the British common-law practice of treating the Chief Executive as absolutely immune in all circumstances. They crafted a carefully balanced approach that authorizes the criminal prosecution of a President, but only *after* both Houses of Congress—reflecting the widespread political consensus required for a two-thirds majority vote of the Senate—support the President’s removal from office for high crimes and misdemeanors. U.S. CONST. art. I, § 3, cl.7.

Contrary to the lower court’s ahistorical analysis, this was the common understanding of the Founders—that criminal prosecution of a President could only occur if the President was impeached and *convicted* by the U.S. Senate. *Id.* This understanding matches the views of both Chief Justice Marshall and Attorney General Charles Lee (Attorney General under Presidents George Washington and John Adams), as expressed in *Marbury v. Madison*, 5 U.S. at 149, 165-66, and the understanding of Justice Story reflected both in his Commentaries and in his opinion in *Martin*, 25 U.S. at 32-33.

This was also the clear and unambiguous understanding of Alexander Hamilton. The per curiam opinion states that “President Trump turns to one sentence written by Alexander Hamilton in the Federalist 69,” App’x 46A, but its math is off. Hamilton wrote, not once, but three times in three different essays, that the President may be subject to criminal prosecution only *after* he is impeached and convicted by the Senate, and as a “*consequence*”

of that conviction. “The President of the United States would be liable to be impeached, tried, and, upon conviction of treason, bribery, or other high crimes or misdemeanors, removed from office; and would *afterwards* be liable to prosecution and punishment in the ordinary course of law.” THE FEDERALIST NO. 69 (Hamilton). “The punishment which may be *the consequence* of conviction upon impeachment, is not to terminate the chastisement of the offender. *After* having been sentenced to a perpetual ostracism from the esteem and confidence, and honors and emoluments of his country, he will still be liable to prosecution and punishment in the ordinary course of law.” THE FEDERALIST NO. 65 (Hamilton). The President is “at all times liable to impeachment, trial, dismissal from office, incapacity to serve in any other, and to forfeiture of life and estate by *subsequent* prosecution in the common course of law.” THE FEDERALIST NO. 77 (Hamilton) (all emphases added). As Hamilton explains, criminal prosecution of a President can arise only “after,” “subsequent” to, “afterwards,” and as a “*consequence*” of “conviction upon impeachment.” *Id.* (emphasis added). “The plain implication” of this Clause “is that criminal prosecution, like removal from the Presidency and disqualification from other offices, is a consequence that can come about only after the Senate’s judgment, not during or prior to the Senate trial.” *Trump v. Vance*, 140 S. Ct. 2412, 2444 (2020) (Alito, J., dissenting). “This was how Hamilton explained the impeachment provisions in the Federalist Papers. He wrote that a President may ‘be impeached, tried, and, upon conviction ... would afterwards be liable to prosecution and punishment in the ordinary course of law.’” *Id.* (quoting THE FEDERALIST NO. 69).

The opinion below errs by disregarding this formidable, carefully crafted structural check against the criminal prosecution of Presidents for their official acts. Conviction upon impeachment requires both a majority vote of the House to impeach, and two-thirds majority vote of the U.S. Senate to convict—which together require a widespread political consensus of elected representatives across the political spectrum and across the Nation’s geographic

regions. Criminal prosecution, by contrast, requires only a single enterprising prosecutor and a compliant grand jury drawn from a tiny slice of America, which may be—and, if the prosecutor is clever enough, probably will be—located in an enclave of deep political hostility to the President. Therefore, criminal prosecution which can only occur after impeachment and conviction plainly does not present the same “chilling effect,” App’x 33A, as prosecution unhindered by any structural check—as in this case, where President Trump was acquitted by the Senate but then wrongfully prosecuted by his political opponent for the same conduct.

Finally, for the reasons discussed above, the D.C. Circuit’s overall assessment that “the risk of criminal liability chilling Presidential action appears to be low,” App’x 34A, cannot be squared with our recent political history. Impeachment of Presidents, once virtually unheard-of, is becoming a routine feature of interbranch conflict. Once the political Rubicon is crossed, criminal prosecution of Presidents by their political opponents will become common, and the *threat* of such prosecution will become ubiquitous, hanging over every President like a sword of Damocles. Instead of acting fearlessly, every President will be forced to ponder, before taking any official act—especially the most politically controversial decisions—whether the decision may lead to his or her prosecution, conviction, and imprisonment once the administration changes. Enterprising political opponents, aware of this, will wield the threat of prosecution as a powerful and menacing tool to influence Presidents’ official actions. The judgment below thus “deeply wounds the President” by forever undermining his or her independence. *Morrison*, 487 U.S. at 713 (Scalia, J., dissenting).

III. There Is a Likelihood of Irreparable Harm Absent the Stay.

The third factor considers whether the applicant “would ... suffer irreparable harm were the stay not granted.” *Karcher*, 455 U.S. at 1306. Here, the threat of irreparable injury if the D.C. Circuit’s mandate is not stayed is clear and manifest.

A. Absent a Stay, President Trump Will Immediately Be Required to Bear the Burdens of Prosecution and Trial.

Absolute immunity is “an entitlement not to stand trial or face the other burdens of litigation.... The entitlement is an immunity from suit rather than a mere defense to liability; and like an absolute immunity, *it is effectively lost if a case is erroneously permitted to go to trial.*” *Mitchell v. Forsyth*, 472 U.S. 511, 526 (1985) (emphasis added). Absolute immunity’s protection is “not limited to liability for money damages,” but “also include[s] ‘the general costs of subjecting officials to the risks of trial—distraction of officials from their governmental duties, inhibition of discretionary action, and deterrence of able people from public service.’” *Id.* (quoting *Harlow v. Fitzgerald*, 457 U.S. 800, 816 (1982)). Under absolute immunity, “even such pretrial matters as discovery are to be avoided if possible, as ‘[i]nquiries of this kind can be peculiarly disruptive of effective government.’” *Id.* (quoting *Harlow*, 457 U.S. at 817); *see also Pearson v. Callahan*, 555 U.S. 223, 231-32 (2009) (reaffirming that official immunity is “an immunity from suit rather than a mere defense to liability” that “is effectively lost if a case is erroneously permitted to go to trial”); *Ashcroft v. Iqbal*, 556 U.S. 662, 672 (2009); *Behrens v. Pelletier*, 516 U.S. 299, 308 (1996); *P.R. Aqueduct & Sewer Auth. v. Metcalf & Eddy, Inc.*, 506 U.S. 139, 143-44 (1993).

The same is true of President Trump’s claim based on principles of double jeopardy under the Impeachment Judgment Clause. *See, e.g., Helstoski v. Meanor*, 442 U.S. 500, 507-08 (1979) (double jeopardy protects defendants “not only from the consequences of litigation’s results but also from the burden of defending themselves”) (quotation omitted); *Abney v. United States*, 431 U.S. 651, 661 (1977) (double jeopardy “assures an individual that, among other things, he will not be forced, with certain exceptions, to endure the personal strain, public embarrassment, and expense of a [second] criminal trial”); *accord Digital Equip. Corp. v. Desktop Direct, Inc.*, 511 U.S. 863, 869-71 (1994) (summarizing cases holding that double-

jeopardy and immunity defenses involve an “entitlement not to stand trial or face the other burdens of litigation”).

In fact, the opinion below strongly endorses this conclusion. In holding that there is appellate jurisdiction over this interlocutory appeal under 28 U.S.C. § 1291, the opinion emphasizes that “[i]t would be ... ‘unseemly’ for us to require that former President Trump first be tried in order to secure review of his immunity claim after final judgment.” App’x 14A (quoting *Nixon*, 418 U.S. at 691-92). “[T]he ‘deprivation of the right not to be tried’ would be ‘effectively unreviewable on appeal from a final judgment.’” *Id.* at 15 (quoting *Midland Asphalt Corp. v. United States*, 489 U.S. 794, 800–01 (1989)). “[T]he right not to stand trial must be ‘vindicated before trial’ or not at all.” *Id.* These statements cannot be squared with the panel’s decision to dramatically *accelerate* its issuance of the mandate—thus immediately launching criminal proceedings and trial in the district court—before the completion of ordinary appellate review, especially this Court’s review. App’x 58A.

B. Conducting the Criminal Trial of President Trump Will Inflict Grave First Amendment Injuries on American Voters.

The D.C. Circuit’s extraordinary decision to return the mandate to the district court to proceed to trial imposes another grave species of irreparable injury—the threat to the First Amendment rights of President Trump, his supporters and volunteers, and all American voters, who are entitled to hear from the leading candidate for President at the height of the Presidential campaign. The Special Counsel seeks urgently to force President Trump into a months-long criminal trial at the height of campaign season, effectively sidelining him and preventing him from campaigning against the current President to whom the Special Counsel ultimately reports, President Biden. This would impose grave First Amendment injuries on President Trump and all American voters, whether they support him or not, and threatens to tarnish the federal courts with the appearance of partisanship.

“The loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.” *Elrod v. Burns*, 427 U.S. 347, 373 (1976). Here, President Trump is the leading candidate for President of the United States and the greatest electoral threat to President Biden, whose administration is prosecuting him. Conducting a months-long criminal trial of the leading opponent of the current regime in the middle of a Presidential campaign will inevitably disrupt President Trump’s ability to campaign against President Biden, stifling his voice and preventing American voters from hearing from the leading candidate.

The speech of a Presidential candidate campaigning for President stands at the pinnacle of First Amendment protection. “Speech on matters of public concern is at the heart of the First Amendment’s protection. That is because speech concerning public affairs is more than self-expression; it is the essence of self-government.” *Snyder v. Phelps*, 562 U.S. 443, 451-52 (2011) (cleaned up) (citing numerous cases). “No form of speech is entitled to greater constitutional protection” than “[c]ore political speech.” *McIntyre v. Ohio Elec. Comm’n*, 514 U.S. 334, 347 (1995). Likewise, the First Amendment’s “constitutional guarantee has its fullest and most urgent application precisely to the conduct of campaigns for political office.” *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 162 (2014) (quoting *Monitor Patriot Co. v. Roy*, 401 U.S. 265, 272 (1971)). Campaign speech lies “at the core of our electoral process of the First Amendment freedoms—an area ... where protection of robust discussion is at its zenith.” *Meyer v. Grant*, 486 U.S. 414, 425 (1988) (citations and quotations omitted).

This First Amendment protection extends, first and foremost, to the American voters who would hear and consider President Trump’s campaign speech as they reflect on how to cast their ballots in November. The First Amendment’s “protection afforded is to the

communication, to its source and to its recipients both.” *Va. State Bd. of Pharm. v. Va. Citizens Consumer Council, Inc.*, 425 U.S. 748, 756 (1976) (citing many cases); *see also* *Packingham v. North Carolina*, 582 U.S. 98, 104 (2017) (recognizing the right to “speak and listen, and then ... speak and listen once more,” as a “fundamental principle of the First Amendment”); *Red Lion Broad. Co. v. F.C.C.*, 395 U.S. 367, 390 (1969). “[T]he right to receive ideas follows ineluctably from the sender’s First Amendment right to send them.” *Bd. of Educ., Island Trees Union Free Sch. Dist. No. 26 v. Pico*, 457 U.S. 853, 867 (1982). A *de facto* restriction on President Trump’s campaign speech—such as that caused by a months-long criminal trial at the height of campaign season—inflicts a “reciprocal” injury on the hundreds of millions of Americans who listen to him. *Va. State Bd. of Pharm.*, 425 U.S. at 757.

This Court has “never allowed the government to prohibit candidates from communicating relevant information to voters during an election.” *Republican Party of Minnesota v. White*, 536 U.S. 765, 781-82 (2002). Permitting the Biden administration to put its leading political opponent on trial in the middle of the campaign for President would do just that—effectively stifling President Trump’s campaign speech for months on end with the election date less than nine months away.

IV. The Balancing of Equities Strongly Favors a Stay.

Since this is not a “close case,” the Court need not “balance the equities.” *Karcher*, 455 U.S. at 1305-06. But if it does, the equities strongly favor a stay of the mandate. As detailed above, the considerations counseling in favor of a stay are overwhelming. They include preserving this Court’s jurisdiction to hear this appeal in an orderly fashion, protecting the 234-year tradition against prosecuting Presidents for their official acts, preventing all Presidents from being effectively blackmailed and extorted by their political opponents with threat of wrongful prosecution for their official acts, preventing the manifest

irreparable injury of forcing President Trump to undergo criminal trial before his claim of immunity is adjudicated, and violating the First Amendment rights of all American voters to hear from the leading candidate at the height of a Presidential campaign.

Against these compelling interests, in the court below, the Special Counsel cited only one consideration supposedly justifying the immediate return of the mandate to the district court: “the imperative public importance of a prompt resolution of this case.” C.A. Resp.Br. at 65. The Special Counsel cited the same vaguely defined interest in “prompt resolution” of this case in its Petition for Certiorari Before Judgment, which this Court denied. As noted in President Trump’s Brief in Opposition, the Special Counsel conflates the supposed “public” interest, *id.*, with the manifestly *partisan* interest of the Special Counsel’s ultimate boss, President Biden, in conducting President Trump’s criminal trial while he is campaigning against President Biden himself.

In the Court of Appeals, as here, the Special Counsel never explains *why* it is so “imperative” that this case proceed to trial immediately, forestalling ordinary en banc review and even this Court’s review procedures. The prospect that an interlocutory appeal of an immunity question might affect a pending trial date is commonplace and routine. “Especially in cases of extraordinary public moment, the individual may be required to submit to delay not immoderate in extent and not oppressive in its consequences if the public welfare or convenience will thereby be promoted.” *Landis v. N. Am. Co.*, 299 U.S. 248, 256 (1936). “A mere assertion of delay does not constitute substantial harm. Some delay would be occasioned by almost all interlocutory appeals.” *United States v. Philip Morris, Inc.*, 314 F.3d 612, 622 (D.C. Cir. 2003), *jurisdictional ruling overruled by Mohawk Indus., Inc. v. Carpenter*, 558 U.S. 100 (2009).

“The Special Counsel’s request, therefore, cannot avoid the appearance of partisanship.” BIO in No. 23-624, at 22. “This Court is ‘not required to exhibit a naiveté

from which ordinary citizens are free.” *Id.* (quoting *Dep’t of Com. v. New York*, 139 S. Ct. 2551, 2575 (2019)). The Special Counsel’s prior request to circumvent ordinary appellate review caused “commentators from across the political spectrum [to] observe[] that its evident motivation is to schedule the trial before the 2024 presidential election—a nakedly political motive.” *Id.* (citing Elie Honig, *Why Jack Smith Will Never Say the ‘E’ Word*, CNN (Dec. 16, 2023), <https://www.cnn.com/videos/politics/2023/12/16/smr-honig-on-smith-vs-election-calendar.cnn>; Editorial Board, *Jack Smith and the Supreme Court*, Wall St. J. (Dec. 16, 2023); Jason Willick, *Politics Are Now Clearly Shaping Jack Smith’s Trump Prosecution*, Wash. Post (Dec. 12, 2023), <https://www.washingtonpost.com/opinions/2023/12/12/special-counsel-jack-smith-politicized-prosecution/>; and Byron York (@ByronYork), X (Dec. 11, 2023), <https://twitter.com/ByronYork/status/1734305076582244850?s=20>).

“The Special Counsel thus confuses the public interest with a partisan interest of his superior, President Biden.” *Id.* at 22. “The Special Counsel’s politicization of the trial schedule” also “departs from the best traditions of the U.S. Department of Justice,” which “call for prosecutors to *avoid* the appearance of election interference in the prosecution of political candidates.” *Id.* at 23 (citing U.S. Dep’t of Justice, Justice Manual §§ 9-27.260, 9-85.500 (2018); <https://www.justice.gov/jm/jm-9-27000-principles-federal-prosecution#9-27.260>). “The Special Counsel’s extraordinary petition creates a strong appearance of a significant departure from those rules and aspirations.” *Id.* at 24.

“Even worse, the Special Counsel’s request threatens to tarnish” the Court of Appeals’ “procedures with the same appearance of partisanship.” *Id.* at 24 (citing Editorial Board, *Jack Smith and the Supreme Court*, Wall St. J. (Dec. 16, 2023)). “The Special Counsel urge[d]” the lower court “to jettison venerable principles of prudence, leapfrog the ordinary process of appellate review, and rush headlong to decide one of the most novel, complex, and

momentous legal issues in American history.” *Id.* at 25. “In doing so, the Special Counsel seeks to embroil” both the Court of Appeals and “this Court in a partisan rush to judgment on some of the most historic and sensitive questions that the Court may ever decide.” *Id.* The Court should issue a stay of the D.C. Circuit’s mandate to put an end to these ill-conceived efforts to circumvent the ordinary processes of appellate review.

* * *

“‘Haste makes waste’ is an old adage. It has survived because it is right so often.” *Kusay v. United States*, 62 F.3d 192, 195 (7th Cir. 1995). The Court should stay the D.C. Circuit’s mandate pending resolution of a petition for certiorari, and if review is granted, resolution of this case on the merits by this Court.

As additional relief, in issuing its stay, President Trump requests that this Court direct that the D.C. Circuit’s mandate is stayed pending the resolution, not just of proceedings in this Court, but also of President Trump’s planned petition for en banc consideration in the D.C. Circuit, which he intends to file in the D.C. Circuit in the ordinary course before seeking (if necessary) this Court’s review, if given the opportunity to do so. As noted in President Trump’s Brief in Opposition in No. 23-624, en banc consideration by the lower courts provides an important part of the percolation that this Court ordinarily prefers before reviewing petitions for certiorari. For example, in *United States v. Nixon*, this Court had the benefit of the multiple thoughtful opinions produced by the D.C. Circuit’s en banc consideration of *Nixon v. Sirica*, which addressed the same executive privilege asserted against a grand-jury subpoena the year before. 487 F.2d 700, 700-22 (D.C. Cir. 1973) (en banc) (cited in *Nixon*, 418 U.S. at 689, 708 & n.17); *id.* at 729 (MacKinnon, J., concurring in part and dissenting in part); *id.* at 762 (Wilkey, J., dissenting). Allowing President Trump to pursue en banc review in the D.C. Circuit will provide an opportunity for similar thoughtful consideration in the lower court before this Court addresses the novel, complex,

and momentous issues at stake in this appeal. *See Belk v. Charlotte-Mecklenburg Bd. of Educ.*, 211 F.3d 853, 854-55 (4th Cir. 2000) (Wilkinson, C.J., concurring in the denial of initial hearing en banc).

CONCLUSION

This Court should stay the D.C. Circuit's mandate pending resolution of President Trump's petition for certiorari in this Court. As additional relief, President Trump requests that this Court stay the D.C. Circuit's mandate pending the resolution of a petition for en banc consideration in that court, before the filing (if necessary) of his petition for certiorari in this Court.

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APPENDIX

Per Curiam Opinion of the United States Court of Appeals for the District of Columbia Circuit (February 6, 2024)	1A
Per Curiam Judgment and Order of the United States Court of Appeals for the District of Columbia Circuit (February 6, 2024)	58A